

		Plaintiff to give notice and submit an Amended Judgment forthwith.
3	Wang vs. Bui	<u>Motion to Tax Costs</u> The court DENIES in part, and GRANTS in part, Plaintiffs JIN WANG, M.D. and CHIRAG VAIDYA, M.D.'s motion to tax costs. In their one-page memorandum of points and authorities (ROA 541), Plaintiffs argue that the Defendants' failure to use the Judicial Council Worksheet for the Memorandum of Costs (MC-11) is sufficient grounds to strike the Defendants' entire memorandum of costs. As Defendants note in their opposing papers, Plaintiffs' argument lacks merit. Rule 3.1700 of the California Rules of Court requires a party to serve and file a memorandum of costs; It does not require the use of the Worksheet. As the court held in <i>Ladas v. California State Automotive Association</i> (1993) 19 Cal.App.4th 761, 774, "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." As such, Plaintiffs' argument for striking the entire cost memorandum is without merit and as such, the court DENIES the request to strike the entire cost memorandum. Shortly after Defendants provided a set of exhibits to support the charges claimed, Plaintiffs filed a reply brief wherein they challenge certain deposition costs and filing fees. <i>Deposition Costs</i> Plaintiffs argue that the court should tax \$1,351.25 for a claimed deposition no-show on 4/14/22. The last page of Defendants' Exhibit List, which was belatedly filed on